

**SUBSTITUTE FOR
HOUSE BILL NO. 5937**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending sections 1301, 1305, and 3112 (MCL 324.1301, 324.1305,
and 324.3112), section 1301 as amended by 2018 PA 451, section 1305
as amended by 2011 PA 246, and section 3112 as amended by 2018 PA
667.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1301. As used in this part:

2 (a) "Application period" means the period ~~beginning that~~
3 **begins** when an application for a permit is received by ~~the this~~
4 state and ~~ending ends~~ when the application is considered ~~to be~~
5 administratively complete under section 1305 and any applicable fee
6 ~~has been is~~ paid.



(b) "Department" means the department, agency, or officer authorized by this act to approve or deny an application for a particular permit. As used in sections 1315 to 1317, "department" means the department of ~~environmental quality~~**environment, Great Lakes, and energy**.

(c) "Director" means the director of the state department authorized under this act to approve or deny an application for a particular permit or the director's designee. As used in sections 1313 to 1317, "director" means the director of the department of ~~environmental quality~~**environment, Great Lakes, and energy**.

(d) "Environmental permit review commission" or "commission" means the environmental permit review commission established under section 1313(1).

(e) "Environmental permit panel" or "panel" means a panel of the environmental permit review commission, appointed under section 1315(2).

(f) "Permit", except as provided in subdivision (g), means a permit, operating license, or registration required by any of the following sections or by rules promulgated thereunder, or, in the case of section 9112, by an ordinance referred to in that section:

(i) Section 3104, floodplain alteration permit.

(ii) Section 3503, permit for use of water in mining iron ore.

(iii) Section 4105, sewerage system construction permit.

(iv) Section 6516, vehicle testing license.

(v) Section 6521, motor vehicle fleet testing permit.

(vi) Section 8310, restricted use pesticide dealer license.

(vii) Section 8310a, agricultural pesticide dealer license.

(viii) Section 8504, license to manufacture or distribute fertilizer.



1 (ix) Section 9112, local soil erosion and sedimentation control
2 permit.

3 (x) Section 11509, solid waste disposal area construction
4 permit.

5 (xi) Section 11512, solid waste disposal area operating
6 license.

7 (xii) Section 11542, municipal solid waste incinerator ash
8 landfill operating license amendment.

9 (xiii) Section 11702, septage waste servicing license or septage
10 waste vehicle license.

11 (xiv) Section 11709, septage waste site permit.

12 (xv) Section 30104, inland lakes and streams project permit.

13 (xvi) Section 30304, state permit for dredging, filling, or
14 other activity in wetland. Permit includes an authorization for a
15 specific project to proceed under a general permit issued under
16 section 30312.

17 (xvii) Section 31509, dam construction, repair, or removal
18 permit.

19 (xviii) Section 32312, flood risk, high risk, or environmental
20 area permit.

21 (xix) Section 32512, permit for dredging and filling
22 bottomland.

23 (xx) Section 32603, permit for submerged log removal from Great
24 Lakes bottomlands.

25 (xxi) Section 35304, department permit for critical dune area
26 use.

27 (xxii) Section 36505, endangered species permit.

28 (xxiii) Section 41329, nonnative aquatic species sales



1 registration.

2 (xxiv) Section 41702, game bird hunting preserve license.

3 (xxv) Section 42101, dog training area permit.

4 (xxvi) Section 42501, fur dealer's license.

5 (xxvii) Section 42702, game dealer's license.

6 (xxviii) Section 44513, charter boat operating permit under
7 reciprocal agreement.

8 (xxix) Section 44516, boat livery operating permit.

9 (xxx) Section 45902, game fish propagation license.

10 (xxxi) Section 45906, game fish import license.

11 (xxxii) Section 48705, permit to take amphibians and reptiles
12 for scientific or educational use.

13 (xxxiii) Section 61525, oil or gas well drilling permit.

14 (xxxiv) Section 62509, brine, storage, or waste disposal well
15 drilling or conversion permit or test well drilling permit.

16 (xxxv) Section 63103a, ferrous mineral mining permit.

17 (xxxvi) Section 63514 or 63525, surface coal mining and
18 reclamation permit or revision of the permit, respectively.

19 (xxxvii) Section 63704, sand dune mining permit.

20 (xxxviii) Section 72108, use permits for a Pure Michigan Trail.

21 (xxxix) Section 76109, sunken aircraft or watercraft abandoned
22 property recovery permit.

23 **(xl)** ~~(xxx)~~ Section 76504, Mackinac Island motor vehicle and
24 land use permits.

25 **(xli)** ~~(xxx)~~ Section 80159, buoy or beacon permit.

26 (g) "Permit", as used in sections 1313 to 1317, means any
27 permit or operating license that meets both of the following
28 conditions:



(i) The applicant for the permit or operating license is not this state or a political subdivision of this state.

(ii) The permit or operating license is issued by the department of ~~environmental quality~~ **environment, Great Lakes, and energy** under this act or the rules promulgated under this act.

(h) "Processing deadline" means the last day of the processing period.

(i) "Processing period", subject to section 1307(2) and (3), means the following time period after the close of the application period, for the following permit, as applicable:

(i) Twenty days for a permit under section 61525 or 62509.

(ii) Thirty days for a permit under section 9112 or 44516.

(iii) Thirty days after the department consults with the underwater salvage and preserve committee created under section 76103, for a permit under section 76109.

(iv) Thirty days or, if a hearing is held, 90 days for a permit under section 30304.

(v) ~~(iv)~~ Sixty days ~~—~~ for a permit under section 30104 for a minor project established under section 30105(7) or 32512a(1), or an authorization for a specific project to proceed under a general permit issued under section 30105(8) or 32512a(2), or for a permit under section 32312 or 41329.

(vi) ~~(v)~~ Sixty days or, if a hearing is held, 90 days for a permit under section 35304.

(vii) ~~(vi)~~ Sixty days or, if a hearing is held, 120 days for a permit under section 30104, other than a permit or authorization described in subparagraph (ii) or (iv), or for a permit under section 31509.

(viii) ~~(vii)~~ Ninety days for a permit under section 11512, a



1 revision of a surface coal mining and reclamation permit under
2 section 63525, or a permit under section 72108.

3 **(ix)** ~~(viii)~~ Ninety days or, if a hearing is held, 150 days for a
4 permit under section 3104, ~~or 30304,~~ or a permit under section
5 32512 other than a permit described in subparagraph (iv).

6 **(x)** (ix) Ninety days after the close of the review or comment
7 period under section 32604, or if a public hearing is held, 90 days
8 after the date of the public hearing for a permit under section
9 32603.

10 **(xi)** ~~(x)~~ One hundred twenty days for a permit under section
11 11509, 11542, 63103a, 63514, or 63704.

12 **(xii)** ~~(xi)~~ One hundred fifty days for a permit under section
13 36505. However, if a site inspection or federal approval is
14 required, the 150-day period is tolled pending completion of the
15 inspection or receipt of the federal approval.

16 **(xiii)** ~~(xii)~~ For any other permit, 150 days or, if a hearing is
17 held, 90 days after the hearing, whichever is later.

18 Sec. 1305. (1) After a department receives an application for
19 a permit, the department shall determine whether the application is
20 administratively complete. Unless the department proceeds as
21 provided under subsection (2), the application ~~shall be~~ **is**
22 considered to be administratively complete when the department
23 makes that determination or ~~30-7~~ days after the ~~state~~ **department**
24 receives the application, whichever is first.

25 (2) If, before the expiration of the ~~30-day~~ **7-day** period under
26 subsection (1), the department notifies the applicant that the
27 application is not administratively complete, ~~specifying and~~
28 **specifies** the information necessary to make the application
29 administratively complete, or notifies the applicant that a fee



required to accompany the application has not been paid ~~7~~
~~specifying and specifies~~ the amount due, the running of the ~~30-day~~
7-day period under subsection (1) is tolled until the applicant
 submits to the department the specified information or fee amount
 due. The notice ~~shall~~**must** be given in writing or by electronic
 notification.

(3) Subject to subsection (4), after an application for a
 permit is considered ~~to be~~ administratively complete under this
 section, the department shall not request from the applicant any
 new or additional information that is not specified in the list
 required under section 1303(2)(a) unless the request includes a
 detailed explanation of why the information is needed. The
 applicant is not required to provide the requested information as a
 condition for approval of the permit.

(4) After an application for a permit is considered ~~to be~~
 administratively complete under this section, the department may
 request the applicant to clarify, amplify, or correct the
 information required for the application. The applicant shall
 provide the requested information.

Sec. 3112. (1) A person shall not discharge any waste or waste
 effluent into the waters of ~~this~~**the** state unless the person is in
 possession of a valid permit from the department.

(2) An application for a permit under subsection (1) ~~shall~~
must be submitted to the department. ~~Within 30~~**Not later than 7**
 days after an application for a new or increased use is received,
 the department shall determine whether the application is
 administratively complete. ~~Within 90~~**Not later than 7** days after an
 application for reissuance of a permit is received, the department
 shall determine whether the application is administratively



complete. If the department determines that an application is not **administratively** complete, the department shall notify the applicant in writing within the applicable time period. If the department does not make a determination as to whether the application is **administratively** complete within the applicable time period, the application ~~shall be~~ **is** considered ~~to be~~ complete.

(3) The department shall condition the continued validity of a permit ~~upon~~ **on** the ~~permittee's~~ **permittee** meeting the effluent requirements that the department considers necessary to prevent unlawful pollution by the dates that the department considers ~~to be~~ reasonable and necessary and to ensure compliance with applicable federal law. If the department finds that the terms of a permit have been, are being, or may be violated, ~~it~~ **the department** may modify, suspend, or revoke the permit or grant the permittee a reasonable period of time in which to comply with the permit. The department may reissue a revoked permit ~~upon~~ **on** a showing satisfactory to the department that the permittee has corrected the violation. A person ~~who~~ **that** has had a permit revoked may apply for a new permit.

(4) If the department determines that a person is causing or is about to cause unlawful pollution of the waters of ~~this~~ **the** state, the department may notify the alleged offender of ~~its~~ **the department's** determination and enter an order ~~requiring~~ **that requires** the person to abate the pollution or may refer the matter to the attorney general for legal action, or both.

(5) A person ~~who~~ **that** is aggrieved by an order of abatement of the department or by the reissuance, modification, suspension, or revocation of an existing permit of the department executed ~~pursuant to~~ **under** this section may file a sworn petition with the



1 department ~~setting that sets~~ forth the grounds and reasons for the
 2 complaint and ~~requesting requests~~ a contested case hearing on the
 3 matter ~~pursuant to under~~ the administrative procedures act of 1969,
 4 1969 PA 306, MCL 24.201 to 24.328. A petition filed more than 60
 5 days after action on the order or permit may be rejected by the
 6 department as being untimely.

7 (6) All oceangoing vessels engaging in port operations in this
 8 state shall obtain a permit from the department. The department
 9 shall issue a permit for an oceangoing vessel only if the applicant
 10 can demonstrate that the oceangoing vessel complies with 33 CFR
 11 151.1510 as then in effect or the oceangoing vessel will utilize
 12 environmentally sound technology and methods approved by the
 13 department that prevent the discharge of aquatic nuisance species.
 14 However, all of the following shall apply:

15 (a) The grant by the coast guard of an extension to the
 16 implementation schedule under 33 CFR 151.1513 or the exchange of
 17 ballast water under 33 CFR 151.1510(a)(1) or saltwater flushing
 18 under 33 CFR 401.30 alone is not considered compliance with the
 19 federal aquatic nuisance rule for the purposes of this section.

20 (b) A vessel discharging ballast water must employ a ballast
 21 water management system approved ~~pursuant to under~~ 33 CFR
 22 ~~151.1510(A)(3)~~ **151.1510(a)(3)** or a ballast water treatment method
 23 approved by the department.

24 (c) A vessel must carry out an exchange of ballast water or
 25 saltwater flushing and comply with other applicable requirements of
 26 33 CFR part 151, subpart C, and 33 CFR 401.30.

27 (d) A vessel using water from a public water system under 33
 28 CFR 151.1510(a)(4) ~~shall must~~ utilize a method to sufficiently
 29 clean ballast water tanks ~~prior to before~~ using water from a public



1 water supply system as ballast water as approved by the department.

2 (e) A discharge that may cause or contribute to a violation of
3 a water quality standard is not authorized by a permit described in
4 this subsection.

5 (f) If the federal aquatic nuisance rule is amended after ~~the~~
6 ~~enactment date of the 2018 amendatory act that added subsection~~
7 ~~(7),~~ **December 28, 2018**, and the director determines that the
8 amended version of the federal aquatic nuisance rule is less
9 protective of the waters of ~~this~~ **the** state from aquatic nuisance
10 species, the applicant shall demonstrate that the oceangoing vessel
11 complies with the federal aquatic nuisance rule as in effect
12 immediately before the effective date of that amendment to the
13 federal aquatic nuisance rule.

14 (g) If ~~pursuant to~~ **in accordance with** a compact of Great Lakes
15 states of which this state is a part, this state adopts standards
16 more protective of the waters of ~~this~~ **the** state from aquatic
17 nuisance species than the version of the federal aquatic nuisance
18 rule otherwise applicable under this subsection, the standards
19 adopted ~~pursuant to~~ **in accordance with** the compact apply.

20 (7) The intent of the legislature in adopting in part the
21 federal aquatic nuisance rule by reference is to help harmonize
22 regulatory programs in Great Lakes states for preventing the
23 introduction and spread of aquatic nuisance species in the Great
24 Lakes, including ballast water management programs, and to allow
25 regulatory agencies to cooperate in developing stronger programs.

26 (8) Permit fees for permits under subsection (6) ~~shall~~ **must** be
27 assessed as provided in section 3120. The permit fees for an
28 individual permit issued under subsection (6) are the fees
29 specified in section 3120(1)(a) and (5)(a). The permit fees for a



1 general permit issued under subsection (6) are the fees specified
2 in section 3120(1)(c) and (5)(b)(i). Permits under subsection (6)
3 ~~shall~~**must** be issued in accordance with the timelines provided in
4 section 3120. The department may promulgate rules to implement
5 subsections (6) to (8).

6 (9) As used in this section, "federal aquatic nuisance rule"
7 means 33 CFR part 151, subpart C, and applicable requirements of 33
8 CFR 151.2050, 151.2060, and 151.2070.

9 Enacting section 1. This amendatory act does not take effect
10 unless all of the following bills of the 103rd Legislature are
11 enacted into law:

12 (a) House Bill No. 5936.

13 (b) House Bill No. 5938.

14 (c) House Bill No. 6038.